

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1942
Page 1 Section Lines 15 1/2
Of the printed Bill
Of the Engrossed Bill

By inserting the following language:

(INSERT ATTACHED);

and by renumbering subsequent sections

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Reading Clerk

Amendment submitted by: Mark Tedford

1 "SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 7351 of Title 36, unless there
3 is created a duplication in numbering, reads as follows:

4 As used in this act:

5 1. "Dental provider" means a person licensed to practice
6 dentistry in this state or a dental practice entity providing dental
7 services;

8 2. "Dental service" means any service, procedure, or treatment
9 provided by a dental provider for which a charge is established;

10 3. "Current Dental Terminology (CDT) code" means the code set
11 maintained by the American Dental Association or its successor
12 entity;

13 4. "Standard charge" means the regular rate established by a
14 dental provider for a dental service and includes:

15 a. gross charge, and

16 b. discounted cash price;

17 5. "Gross charge" means the charge for a dental service before
18 application of any discounts;

19 6. "Discounted cash price" means the charge that applies to an
20 individual who pays cash or cash equivalent;

21 7. "Third-party payor" means an entity responsible for payment
22 of a claim for a dental service;

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1 8. "Machine-readable format" means a digital file that can be
2 imported or read into a computer system, including .CSV, .JSON, or
3 .XML formats;

4 9. "Shoppable dental service" means a dental service that may
5 be scheduled by a patient in advance;

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 7352 of Title 36, unless there
8 is created a duplication in numbering, reads as follows:

9 A dental provider shall make public:

10 1. A digital file in a machine-readable format containing
11 standard charges for dental services as provided in Section 3 of
12 this act; and

13 2. A consumer-friendly list of standard charges for shoppable
14 dental services as provided in Section 4 of this act.

15 SECTION 3. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 7353 of Title 36, unless there
17 is created a duplication in numbering, reads as follows:

18 A. A dental provider shall:

19 1. Maintain a list of standard charges for dental services; and
20 2. Ensure the list required under paragraph 1 of this section
21 is publicly available at all times via electronic publication.

22 B. The list shall include, for each dental service:

23 1. Description of the service;
24 2. CDT code;

1 3. Gross charge;

2 4. Discounted cash price;

3 C. The list shall:

4 1. Be published in a single digital file in a machine-readable
5 format;

6 2. Be accessible:

7 a. free of charge,

8 b. without requiring a user account, and

9 c without submission of personal information;

10 3. Be searchable; and

11 4. Be updated at least annually, with the date of last update
12 clearly displayed.

13 SECTION 4. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 7354 of Title 36, unless there
15 is created a duplication in numbering, reads as follows:

16 A. A dental provider shall maintain and make publicly available
17 a list of not fewer than twenty-five shoppable dental services.

18 B. The list shall include, for each service:

19 1. Plain-language description;

20 2. CDT code;

21 3. Discounted cash price; and

22 4. Any ancillary services typically associated with the
23 service.

24 C. The list shall:

1 1. Be prominently displayed on the provider's website, if
2 available;

3 2. Be available in-office upon request;

4 3. Be searchable;

5 4. Be provided free of charge; and

6 5. Be updated annually.

7 D. A dental provider that offers fewer than twenty-five
8 shoppable services shall list all such services.

9 SECTION 5. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 7355 of Title 36, unless there
11 is created a duplication in numbering, reads as follows:

12 A. Upon request, and prior to providing non-emergency dental
13 services, a dental provider shall furnish a written estimate that
14 includes:

15 1. Expected dental services;

16 2. Applicable CDT codes; and

17 3. Total estimated cost.

18 B. The estimate shall be provided within a reasonable timeframe
19 prior to the scheduled service.

20 SECTION 6. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 7356 of Title 36, unless there
22 is created a duplication in numbering, reads as follows:

23 A. The State Board of Dentistry may monitor compliance by:

24 1. Reviewing complaints;

1 2. Conducting audits; and

2 3. Reviewing provider websites.

3 B. If a dental provider is noncompliant, the Board may:

4 1. Issue written notice;

5 2. Require a corrective action plan; and

6 3. Impose administrative penalties.

7 SECTION 7. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 7357 of Title 36, unless there
9 is created a duplication in numbering, reads as follows:

10 A dental provider materially violates this act if the provider
11 fails to:

12 1. Publish required pricing information; or

13 2. Maintain pricing information in the required format.

14 SECTION 8. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 7358 of Title 36, unless there
16 is created a duplication in numbering, reads as follows:

17 A. A dental provider that is not in material compliance with
18 this act at the time services are provided shall not initiate or
19 pursue collection actions for those services.

20 B. A patient may bring a civil action to determine compliance.

21 C. A provider found noncompliant shall:

22 1. Refund amounts paid;

23 2. Pay a penalty equal to the amount charged;

24 3. Dismiss any collection actions; and

1 4. Remove related credit reporting."

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